

TORMEY et al v. JENNINGS et al

22CV46038

PLAINTIFFS' MOTION FOR PRELIMINARY INJUNCTION

This is a quiet title action involving an easement for ingress and egress between adjoining parcels APN 012-004-005 and APN 012-004-019, which plaintiffs describe as an easement of necessity given the remoteness of the cabin thereon and the loss of an access bridge previously available to plaintiffs.

Before the Court this day is plaintiffs' application for a preliminary injunction to bar defendants from "blocking" plaintiffs' use of the disputed easement, and to affirmatively remove barriers to that access. Since the sliding scale analysis associated with preliminary injunctions includes consideration of affirmative defenses (see *Aiuto v. City & County of San Francisco* (2012) 201 Cal.App.4th 1347, 1355), and given that there are motions set next week attacking the answer filed on 01/05/23, the hearing on this application is better suited for consideration alongside the demurrer and motion to strike. For this reason, the application for a mixed prohibitory/mandatory injunction is continued to March 3, 2023, at 9:00 am in this department.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

AHMAD v. BAYLESS

22CV46176

DEFENDANT'S MOTION TO AMEND RFA RESPONSES

This is a personal injury action, arising from an automobile accident occurring on July 5, 2022, at the intersection of Burson Road and SR-12. Plaintiff was traveling eastbound on SR-12. Defendant was northbound on Burson, crossing plaintiff's direction of travel with the intention of completing a left turn onto westbound SR-12.

On 09/08/22, plaintiff caused to be served upon defendant a set of Requests for Admission.

On 11/02/22, defendant caused to be served upon plaintiff a verified response to the Requests for Admissions. As it relates to RFA Nos 4-7, 9, and 13-22 (that plaintiff did no wrong and was not comparatively at fault for the accident), defendant responded as follows: "Admit. Discovery and investigation are continuing."

On 11/16/22, defendant sat for a deposition, at which time he reportedly opined that plaintiff may have been driving too fast and that but for his speed defendant would have safely crossed the intersection. This came as a surprise to defense counsel, who was unaware that his client was possessed of that opinion (especially given the RFAs completed just two weeks earlier).

On 12/14/22, and despite defendant's testimony in deposition regarding a basis for comparative fault, plaintiff filed a motion for summary adjudicate concerning *all but* the First (failure to state), Fourth (litigation) and Eighth (set-off) affirmative defenses set forth in defendant's Answer filed 08/30/22. Plaintiff seeks summary adjudication of the remaining eight (8) affirmative defenses, based generally on defendant's sworn RFAs that plaintiff did no wrong and was not comparatively at fault for the accident. Plaintiff's MSA is scheduled to be heard next week (March 3).

On 01/05/23, defendant filed the pending motion for leave to revise the responses previously provided to RFA Nos 4-7, 9, and 13-22 agreeing that plaintiff did no wrong and was not comparatively at fault for the accident. For each RFA, defendant would now like to revise those sworn responses as follows: "Deny."

As a preliminary matter, "each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (CCP §2033.210(b).) That answer "shall be as complete and straightforward" as possible, and consist of either (1) an admission, (2) a denial, or (3) a professed inability to do either because the information known or readily obtainable is insufficient to enable the responding party to admit or deny. Because admissions are designed to put triable issues to rest, and denials are subject to possible sanctions, it has become commonplace for lawyers to